

Shri Prasant Sahu vs Smt. Priyanka Kumari on 18 February, 2022

Author: Sanjay Kumar

Bench: Sanjay Kumar

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CRP(CRP.Art.227) No. 41 of 2021

Shri Prasant Sahu, aged about 36 years, S/o Shri Chandrasekhar Sahu, a permanent resident of Mantripukhri, Opposite UCO Bank, P.O. Imphal & P.S. Heingang, Imphal East 7951001, Manipur.

....Petiti
- Versus -

Smt. Priyanka Kumari, aged about 33 years, W/o Shri Prasant Sahu of Mantripukhri, Opposite UCO Bank, P.O. Imphal & P.S. Heingang, Imphal East 795001, Manipur, at present D/o Shri Navdeshwar Prasad, a resident of 68, Lootary Mahal, Orderly Bazar, Barrackpore, North 24-Parganas, Air Force Station, Kolkata-700120.

...Respondent

BEFORE HON'BLE THE CHIEF JUSTICE MR. SANJAY KUMAR 18.02.2022 The petitioner married the respondent on 16.02.2016. The respondent-wife gave birth to a child in November, 2016. Mat (Divorce) Case No. 49 of 2018 was filed by the petitioner-husband before the Family Court, Imphal East at Lamphelpat, under Section 13(1) (ia) and (ib) of the Hindu Marriage Act, 1955. An ex parte decree of divorce was passed therein on 03.11.2018, dissolving the marriage between the parties. However, it was set aside vide order dated 02.12.2019, upon the application made by the respondent-wife, and the case was restored to the file.

While so, the petitioner-husband filed Judl. Misc. Case No. 171 of 2019 therein under Section 112 of the Evidence Act, 1872, read with Section 151 CPC to direct DNA testing to be undertaken to ascertain whether he was the father of the child born to the respondent-wife. At that time, the case was at the stage of examination of the petitioner-husband's witnesses. However, by order dated 21.11.2020, the Family Court rejected the petition. Aggrieved thereby, the petitioner-husband is

before this Court.

Heard Mr. L. Gunindro, learned counsel for the petitioner-husband, and Ms. L. Sillori, learned counsel, appearing for the respondent-wife.

Significantly, the respondent-wife expressed willingness before the Family Court for the proposed DNA testing, subject to certain conditions. These conditions read as under:

' i) that if the result of the DNA test is found positive i.e., the child is the son of the petitioner; the petitioner should keep her at his house giving the rights of being a wife without any disturbance and violence against her.

ii) all the necessary expenditure of the DNA test shall be borne/afforded by the petitioner as she has no income.

iii) expenditure of journey, accommodation and fees of Advocate of the respondent amounting to a sum of Rs. 1,00,000/- (One lakh only) should be paid by the petitioner.' Despite the same, the Family Court was of the opinion that, as Section 112 of the Evidence Act, 1872 (hereinafter, 'the Act of 1872'), posited a presumption in proof of legitimacy of a child born during the continuance of a valid marriage, no cause was made out for putting it to any scientific test.

Relying on the decisions of the Supreme Court in *Banarsi Dass Vs. Teeku Dutta (Mrs.) & anr.* [(2005) 4 SCC 449], *Sharda Vs. Dharmpal* [AIR 2003 SC 3450] and *Kamti Devi Vs. Poshi Ram* [(2001) 5 SCC 311], the Family Court opined that the power to order medical tests should be exercised only when it is expedient in the interest of justice and held that a DNA test could not rebut the presumption envisaged under Section 112 of the Act of 1872. The Family Court accordingly denied the request for DNA testing to ascertain whether the petitioner-husband was the biological father of the child.

It may be noted that, in *Banarsi Dass (supra)*, the Supreme Court observed that a DNA test should be directed only in deserving cases and not as a matter of routine. It was also held that conclusiveness of the presumption under Section 112 of the Act of 1872 could not be rebutted by a DNA test. In *Sharda (supra)*, the Supreme Court was of the opinion that the Court should exercise the power to direct a medical test when there is a strong *prima facie* case and there is sufficient material before the Court. On the same lines, in *Kamti Devi (supra)*, the Supreme Court noted that Section 112 of the Act of 1872 dates back to a time when modern scientific advancements were not within the contemplation of the legislature and observed that even if a DNA test was scientifically accurate, it would not be enough to escape from the conclusiveness of the presumption under Section 112 of the Act of 1872. The Supreme Court accordingly held that the question regarding the degree of proof of non-access for rebutting the conclusiveness of that presumption has to be answered.

In effect, even if a DNA test proves to the contrary, the presumption under Section 112 of the Act of 1872 would still operate and the party contesting the same must rebut it independently.

In the case on hand, both parties are anxious to have the DNA test undertaken so as to satisfy the petitioner-husband that he is the father of the child. Considering the fact that, if this is proved, they are willing to resume marital relations and the petitioner-husband is agreeable to the conditions stipulated by the wife, this Court is of the opinion that it would be in the interest of the parties and their future marital life to let them undertake the DNA testing so as to scientifically confirm the paternity of the child. Needless to state, even if the said DNA test goes against the respondent-wife, the burden would still be on the petitioner-husband to rebut the conclusive presumption that arises under Section 112 of the Act of 1872. If that event does not come to pass and the petitioner-husband is revealed to be the father of the child, both parties would abide by the conditions put forth by the respondent-wife and resume marital relations peacefully.

On the above analysis, the civil revision petition is disposed of setting aside the order dated 21.11.2020 passed by the Family Court, Imphal East, in Judl. Misc. Case No. 171 of 2019 and directing the DNA testing of the child and the petitioner-husband to scientifically ascertain as to whether or not he is the father of the child. The test would however be subject to the observations made hereinabove.

It shall be open to the parties to seek an adjournment in the pending divorce case till the DNA test result is made available.

In the circumstances, there shall be no order as to costs. A copy of this order shall be supplied online or through whatsapp to the learned counsel for the parties.

CHIEF JUSTICE Indrajeet